

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 07/29/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

Notice is hereby given that the Hon. Benjamin T. Reyes II will be teaching on assignment at the Bernie Witkin Judicial College During the week of July 27, 2026. The Hon. Judith Craddick (Ret.), sitting on assignment, will be presiding over the Law & Motion Calendar on July 29, 2026.

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-01997 CASE NAME: GLORIA NASH VS. 1ST NORTHERN CALIFORNIA CREDIT UNION *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u> Counsel shall appear and be prepared to discuss case management as well as the matter covered by line 9 below.
--

2. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See #11

3. 9:00 AM CASE NUMBER: C24-02882
CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

Off calendar.

4. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

The CMC is **continued** to September 16, 2026 at 8:30 a.m.

5. 9:00 AM CASE NUMBER: C24-03534
CASE NAME: SONIA COLEMAN VS. RESIDENTIAL FIRST CAPITAL
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

This Case Management Conference trails the hearings for Line 20. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative ruling is unopposed. If the tentative ruling is unopposed, then no appearance is required and this CMC is continued to October 14, 2026 at 8:30 a.m.

6. 9:00 AM CASE NUMBER: C25-01135
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

This Case Management Conference trails the hearings for Lines 21 and 22. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative rulings are unopposed. If the tentative rulings are unopposed, then no appearance is required and this CMC is continued to September 23, 2026 at 8:30 a.m.

7. 9:00 AM CASE NUMBER: C25-01877
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

See Line 6 above.

Law & Motion

8. 9:00 AM CASE NUMBER: C24-01654
CASE NAME: MARIA ROSILLO VS. ANTIOCH DUNES HEALTHCARE, LLC, A LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: COMPLIANCE HEARING (SET BY THE COURTROOM)**
FILED BY:
TENTATIVE RULING:

The Court has reviewed the declaration of Nick Castro. It appears that the settlement administrator is in compliance with the terms of the class action settlement agreement insofar as action was required to be taken as of July 14, 2026.

However, there remain obligations regarding the uncashed settlement checks, as contemplated by the settlement agreement. Therefore, the Court continues this hearing to January 27, 2027, at 8:30 a.m. Counsel is ordered to file a final report and declaration regarding completion of the tasks required by the settlement agreement no later than one week before the continued Compliance hearing.

9. 9:00 AM CASE NUMBER: C24-01997
CASE NAME: GLORIA NASH VS. 1ST NORTHERN CALIFORNIA CREDIT UNION
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: NASH, GLORIA
TENTATIVE RULING:

Plaintiff Gloria Nash moves for preliminary approval of her class action and PAGA settlement with defendant 1st Northern California Credit Union.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on July 30, 2024, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum, straight time and overtime wages, failure to provide meal and rest breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, failure to pay all wages due on separation and unfair business practice. A Complaint alleging PAGA claims

(based on a notice to the LWDA given June 20, 2024), was filed on March 7, 2025. On July 22, 2025, the Court entered an order on the parties' stipulation to consolidate the cases for settlement purposes.

The proposed settlement would create a gross settlement fund of \$700,000. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be up to \$233,333.33 (one-third of the settlement). Litigation costs would not exceed \$30,000. The settlement administrator's costs would be up to \$10,000. PAGA penalties would be \$17,500, resulting in a payment of \$11,375 to the LWDA and \$6,125 to the covered employees. The net amount paid directly to the class members would be about \$406,000. The fund is non-reversionary. Based on the estimated class size of 158, the average net payment for each class member is approximately \$2,569.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of "PAGA pay periods" worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed by the void date will be provided to the State Controller's Unclaimed Property Fund.

Informal written discovery was undertaken, and a data expert was retained. The matter settled after arms-length negotiations, which included a session with a mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.) Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

There is one issue that must be addressed. The settlement contains release language covering all “claims that were or reasonably could have been, alleged based on the facts contained in the Actions, and claims under the Fair Employment and Housing Act, Americans with Disabilities Act, Title VII of the Civil Rights Act of 1964, the California Labor Code, and all equivalent claims under federal law.” Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Thus, the Court questions the inclusion of the italicized language. Counsel shall be prepared to address that at the hearing.

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is

reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (Id., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator’s fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. The Court notes there is nothing in Ms. Nash’s declaration describing the amount of time she has devoted to this case. That may be addressed in connection with the final approval hearing.

D. Conclusion

But for the question of the scope of the release, the Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. Counsel shall be prepared to address the scope of the release at the hearing of this motion.

If the Court is satisfied with the proposed release or an amended version of it, and is therefore, prepared to give preliminary approval to the proposed settlement then counsel will be directed to prepare an order reflecting this tentative ruling, and determinations made at the hearing. Counsel shall also request a hearing date for a motion for final approval. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

10. 9:00 AM CASE NUMBER: C24-02017

CASE NAME: RAINY FISHER VS. RLW PROPERTIES, LLC

***HEARING ON MOTION IN RE: FOR FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM**

FILED BY: FISHER, RAINY DAY

***TENTATIVE RULING**

On November 20, 2025, Judge Weil ordered preliminary approval of the class settlement in this action. Now, plaintiff seeks final approval.

Judge Weil undertook a detailed review of the settlement agreement and found it to be “sufficiently fair, reasonable and adequate.” Subsequent events have only strengthened that conclusion. Class notice was properly given and only 23 notices were returned as undeliverable out of the 534 that were mailed; a low rate of approximately 4%. Of the 511 that were delivered, there were no opt outs

and no objections. Nor did any class member dispute the number of weeks worked.

Accordingly, the Court now gives final approval to the settlement of this class action. It approves the Gross Settlement Amount of \$410,000.00. Defendants shall fully fund the Gross Settlement Amount and also fund the amounts necessary to fully pay Defendants' share of payroll taxes in two installments. The two payments, totaling the Gross Settlement Amount, shall be made as follows: (1) \$205,000 to be paid 60 days after entry of judgment; and (2) \$205,000 to be paid 180 days after the first payment.

The Court approves the payment (1) to Class Counsel for attorneys' fees in the amount of \$136,666.67, (2) to Class Counsel for their litigation costs of \$28,000.00, (3) to the Administrator, Apex Class Action Administration, in the amount of \$17,200.00, and (4) to the Class Representative, Rainy Day Fisher in the amount of \$10,000 as an enhancement award.

The Court also approves the allocation of \$10,000.00 to the settlement of the PAGA claims, of which \$7,500.00 shall be payable to the Labor Workforce Development Agency ("LWDA") and \$2,500.00 shall be payable to the Aggrieved Employees.

Thus, the Net Settlement Amount is \$208,133.33 (in addition to the \$2,500 allocated to the employees under the PAGA claims) is fair, reasonable and adequate.

The "Final Order and Judgment Granting Final Approval of Class Action and PAGA Settlement and Request for Attorneys' Fees, Costs, and Class Representative Enhancement Award" is approved in all respects provided, however, that in accordance with Judge Weil's original determination, 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

A compliance hearing is set for December 2, 2026, at 8:30 a.m. in Department 16. Counsel shall file a declaration of the claims administrator regarding settlement distribution no later than November 18, 2026.

11. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: GOLDEN GATE BELL LLC

TENTATIVE RULING:

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of that arbitration.

The motions are **continued to September 16, 2026 at 9:00 a.m.** for supplemental briefing.

Background

Defendant filed these motions on October 20, 2025. The motions are supported by the declaration of Junior Bolanos, Director of Human Resources for Diversified Restaurant Group RSC, LLC, described as a third-party provider of payroll and HR services to Defendant. Bolanos describes Defendant's use of the TalentReef electronic onboarding system, a password-protected platform that restricts the ability of anyone but the employment candidate to access and sign onboarding documents. Bolanos authenticates an arbitration agreement bearing Plaintiff's electronic signature dated June 15, 2023.

Plaintiff filed opposition on July 7, 2026, supported by her own declaration. Plaintiff denies electronically signing the agreement, and states that an employee named "Giovani" asked her for certain background information when she arrived for work. (Hernandez Decl., ¶ 3; see also *id.*, ¶ 4 ["I did not complete any paperwork electronically during my hiring process with Defendant."].) Plaintiff identifies what she claims are errors in the June 15, 2023 application, and in the same paragraph states she "**did** complete an electronic application for Defendant." (*Id.*, ¶ 6 [emphasis added].)

Defendant filed a reply on July 22, 2026, supported by a supplemental declaration of Bolanos and a declaration of Giovanni Saligan, the General Manager of the restaurant where Plaintiff worked. These declarations present matters not addressed in the moving papers. They state that Plaintiff was originally hired for Defendant on September 9, 2021 and electronically signed an arbitration agreement at that time, and they attach that agreement and related documents. They further state that Plaintiff approached Saligan in or around May 2023 asking that her onboarding records be corrected, that the TalentReef platform did not permit the requested modification, that a new onboarding was initiated for that purpose, and that Saligan watched the Plaintiff execute the June 15, 2023 onboarding documents on her own device. The supplemental declaration also states that the identifying information Plaintiff self-reported in 2021 differs from the information provided in 2023.

On July 23, 2026, Plaintiff filed objections to the supplemental Bolanos declaration and the Saligan declaration, asserting that this evidence is untimely and improperly submitted for the first time on reply.

The proponent of an arbitration agreement is not required to establish the authenticity of an electronic signature until the opposing party places it in issue, and supplemental declarations submitted on reply for that purpose are proper. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060-1061.) Here, however, the reply goes further than authentication. It asserts a prior period of employment, a prior arbitration agreement, Plaintiff's own request that her employment records be corrected, and a percipient witness to the 2023 events.

Where enforceability turns on which of two conflicting factual accounts is credited, the court sits as the trier of fact. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.) The court declines to resolve the enforceability issue before Plaintiff has had the chance to respond to Defendant's evidence presented with the reply.

Order

The hearing on this motion is **continued to September 16, 2026 at 9:00 a.m. in Department 16.**

No later than **August 10, 2026**, Plaintiff may file a supplemental opposition brief not exceeding seven pages, together with any declarations and exhibits responding to the supplemental declaration of Junior Bolanos and the declaration of Giovanni Saligan filed with Defendant's reply.

No later than **August 24, 2026**, Defendant may file a supplemental reply brief not exceeding seven pages. No further declarations or evidence may be submitted with the supplemental reply.

12. 9:00 AM CASE NUMBER: C24-03132

CASE NAME: SHAWN HOWARD VS. BMCH CALIFORNIA, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDMENT TO COMPLAINT TO ADD NEW PLAINTIFFS**

FILED BY: ABRAHAM, OMAR

TENTATIVE RULING:

This is plaintiffs' motion for leave to file a first amended complaint to add new plaintiffs. It is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is, therefore, granted. The "[Proposed] First Amendment to Complaint to Add New Plaintiffs" shall be filed and served on or before August 31, 2026.

13. 9:00 AM CASE NUMBER: C24-03379

CASE NAME: NAGESWARA VELINEDI VS. CAPITAL BENEFIT, INC.

HEARING ON SUMMARY MOTION FILED BY DEFENDANTS CAPITAL BENEFIT, INC. ("CAPITAL BENEFIT"), PROVIDENT TRUST GROUP FBO GEORGE S. SIMMONS ROLLOVER IRA #3900656("SIMMONS") AND LAWRENCE E. ELKINS AND NORMA J. ELKINS, TRUSTEES ("ELKINS"), LAWRENCE C. HENIG, TRUSTEE ("HENIG") AND TOTAL LENDER SOLUTIONS, INC. ("TLS") (COLLECTIVELY, "DEFENDANTS")

FILED BY: CAPITAL BENEFIT, INC.

TENTATIVE RULING:

Before the Court is Defendants Capital Benefit, Inc., Provident Trust Group FBO George S. Simmons Rollover Ira #3900656, Lawrence E. Elkins and Norma J. Elkins, Trustees, Lawrence C. Henig, Trustee, and Total Lender Solutions, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication.

Defendants' Request for Judicial Notice of several public records and two Orders previously entered in this matter. The unopposed RJN is **granted**. (Evid. Code § 452 (d), (h).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Summary

On or about May 15, 2023, Defendants Provident Trust Group FBO George S. Simmons Rollover Ira #3900656, Lawrence E. Elkins and Norma J. Elkins, Trustees, Lawrence C. Henig, Trustee ("Beneficiary Defendants") made a loan to Plaintiffs in the principal amount of \$590,000. (UMF 1.) Defendant Capital Benefit, Inc. was the loan servicing agent for the Beneficiary Defendants. (UMF 2.) The Loan was secured by a deed of trust recorded against real property located at 3391 Glencoe Circle in San Ramon, California (the "Property"). (UMF 3.)

Pursuant to the Loan, Plaintiffs were required to make monthly payments of \$6,188.62. (UMF 4.) The maturity date for the Loan was June 1, 2026. (UMF 5.) Plaintiffs failed to timely make their first monthly Loan payment, which was due on July 1, 2023. (UMF 6.) Over the next six months, Plaintiffs promised to get current on Loan payments, but failed to do so. (UMF 7-8.)

On January 3, 2024, the Beneficiary Defendants caused a Notice of Default and Election to Sell Under Deed of Trust ("Initial NOD") to be recorded against the Property. (UMF 9.) As of January 2, 2024, the delinquent balance was \$29,681.32. (UMF 10.) Plaintiffs promised to begin making 'catch up' payments to cure in exchange for the Beneficiary Defendants rescinding the Initial NOD. (UMF 11.) The Beneficiary Defendants agreed and recorded a Notice of Rescission of the Initial NOD on April 12, 2024. (UMF 12.)

Plaintiffs failed to make the promised monthly 'catch-up' payments for two consecutive months. (UMF 13.) As such, the Beneficiary Defendants recorded a second Notice of Default ("Second NOD") on May 14, 2024. (UMF 14.) On May 17, the foreclosure trustee – Defendant Total Lender Solutions, Inc. ("TLS") – sent the Second NOD to Plaintiffs via certified mail and first-class mail. (UMF 15.) The Beneficiary Defendants recorded a Notice of Trustee's Sale ("NOTS") on August 16, 2024. (UMF 16.) On August 19, 2024, TLS mailed the NOTS to Plaintiffs via certified and first-class mail. (UMF 17.) The public auction for the Property was initially scheduled for September 12, 2024. (UMF 18.)

On or about September 10, 2024, Plaintiffs and Beneficiary Defendants entered into a Forbearance Agreement. (UMF 19.) The Forbearance Agreement obligated the Beneficiary Defendants to postpone

the foreclosure sale to October 23, 2024, if they received a cashier's check or wire in the amount of \$45,000 by September 10, 2024, and other terms were honored. (UMF 21.) The Forbearance Agreement also made clear that the Second NOD was not rescinded and the "foreclosure action will not be canceled unless and until the loan is contractually reinstated or paid in full." (UMF 23.) Plaintiffs also agreed that the "foreclosure sale may proceed if there is any default in this agreement without any further notice." (UMF 24.)

After the \$45,000 payment was made, Plaintiffs were obligated to resume regular monthly installment payments of \$6,188.62. (UMF 25.) That payment was required to be received by Capital Benefit by no later than October 10, 2024. (UMF 26.) Plaintiffs were also required to provide written proof to Defendants that the senior loan was current, because the Loan was a junior lien and therefore at risk. (UMF 28.)

On or about September 9, 2024, Plaintiffs made the \$45,000 payment under the Forbearance Agreement. (UMF 32.) Accordingly, the Beneficiary Defendants postponed the trustee's sale to October 23, 2024. (UMF 32.) Capital Benefit did not, however, receive the monthly payment due to it on or before October 10, 2024. (UMF 33.) Capital Benefit also did not receive written proof that the senior loan was current. (UMF 34.) Accordingly, Plaintiffs were in breach under the terms of the Forbearance Agreement.

The Beneficiary Defendants proceeded with the nonjudicial foreclosure sale on October 23, 2024. (UMF 36.) The Beneficiary Defendants were the highest bidder. (*Ibid.*) On December 11, 2024, the Trustee's Deed Upon Sale was recorded. (UMF 37.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the ranting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.)

Initial Considerations

Separate Statement

Defendants' Separate Statement purportedly asserts 273 separate material facts, broken into seven separate sections – Noticed Issues 1-7. However, in reviewing the material facts, the same 39 facts are repeated over and over. For example, 'material fact' 1 is identical to material facts 40, 79, 118, 157,

196, and 235. In other words, there are only 39 material facts alleged. Repeatedly renumbering the same fact several times only makes reviewing the separate statement more time intensive. Once a 'material fact' is asserted – it does not need to be renumbered each time it is reasserted. Fact 1 is just fact 1.

Counsel is urged to try and make their papers easier for the Court to review and not more difficult going forward.

Bookmarks

"[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

Defendants' Request for Judicial Notice is 57 pages long and includes 10 separate documents. No electronic bookmarks with descriptions of the documents were provided. There were also three declarations filed in support which included exhibits. Each of the exhibit's bookmarks were merely labeled with the exhibit number – not a brief description of the exhibit, as required. Likewise, Plaintiff's declaration includes an exhibit without any electronic bookmark or description thereof.

Counsel are reminded to abide by all Rules of Court. This will greatly assist the Court in its review of their papers.

Analysis

Initially, the Court notes that Defendants rely in part on this Court's earlier ruling which deemed Defendants' Requests for Admission served on Plaintiffs admitted. (RJN Ex. 9; Mase Decl. Exs. 1-2.)

A defendant may rely on plaintiff's discovery responses to show that a cause of action has no merit and shift the burden to the plaintiff to demonstrate a triable issue of material fact. (*Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 451 citing *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) "Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action" (California Code of Civil Procedure §2033.410(a).) Admissions of a party, through requests for admission, are sufficient to support a motion for summary judgment. (*Gribin Von Dyl & Assocs. v. Kovalsky* (1986) 185 Cal.App.3d 653, 662; see also CCP 437c(b)(1) "The motion shall be supported by ... admissions ...".)

For ease of reference, the Court will just refer to the RFA number when discussing the applicable request, instead of repeatedly citing the exhibit numbers.

Plaintiffs' Opposition

Plaintiff's Opposition is three pages long (not counting the caption page) and cites a single case with general references to Civil Code §§2924-2924n. It does not cite any evidence, the separate statement, nor the declaration in support filed concurrently therewith. It also fails to address any of the legal arguments made by Defendants – or address any of the cases cited by Defendants. There is no discussion of any of the individual causes of action asserted by Plaintiffs.

Every memorandum of points and authorities "must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th

927, 934.)

In essence, Plaintiffs opposition merely argues that Plaintiffs did not receive notice of the default or trustee's sale – without any factual support or case law supporting that position. Plaintiff instead appears to rely solely on the language of the statutes. With this summary of the Opposition, the Court will address the issues raised by Defendant's MSJ.

Breach of Contract – Deed of Trust

"The standard elements of a claim for breach of contract are '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

"It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion." (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.) The Complaint alleges Defendants breached the terms of the Deed of Trust by failing to provide proper notice of the recording of the Notice of Default ("NOD") and Notice of Trustee's Sale ("NoTS"). (¶¶ 33-36.)

Defendants present evidence that the NOD and NoTS were properly served on Plaintiffs via mail. (UMF 15, 17.) Plaintiffs 'dispute' these facts by indicating that they 'never received any notices from Defendants in the mail. (*Ibid.* at responses.)

To be effective, the NOD and NoTS must be mailed to the trustor. (See e.g. *Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 88 citing Civil Code § 2924b(b)(2).) "The trustor need not receive *actual notice* of the trustee's sale so long as notice is provided to the trustor that is in compliance with the statute." (*Ibid.*)

"As one court has held: "We pointedly emphasize, however, that Civil Code sections 2924-2924h, inclusive, do not require actual receipt by a trustor of a notice of default or notice of sale. They simply mandate certain procedural requirements reasonably calculated to inform those who may be affected by a foreclosure sale and who have requested notice in the statutory manner that a default has occurred and a foreclosure sale is imminent." (*Ibid.* quoting *Lupertino v. Carbahal* (1973) 35 Cal.App.3d 742, 746-47.)

Defendants' evidence shows that the notices were properly sent in accordance with the statutory and contractual requirements. Plaintiffs presented no evidence to rebut this proper service. The declaration that Mr. Valinedi did not actually receive the notice does not negate Defendants' evidence of proper service.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Breach of Contract – Forbearance

Defendants first argue that Plaintiffs failed to perform under the Forbearance Agreement. Via Request for Admission number 10, both Plaintiffs admitted that they "failed to perform under the September 05, 2024, Forbearance/Modification Agreement...." (RFA 10.) As noted above, the second element of a breach of contract claim is "plaintiff's performance or excuse for nonperformance." (*Wall Street Network, Ltd.*, supra, 164 Cal.App.4th at 1178.) The RFAs definitively determine that Plaintiffs cannot

satisfy this requirement – as they have admitted they failed to perform. They also fail to present any evidence that they were ‘excused for non-performance.’

In addition to the above, Defendants present evidence to show that Plaintiffs failed to perform under the terms of the Forbearance Agreement. Pursuant thereto, Plaintiffs were required to re-start monthly payments of \$6,188.62 which was to be received by Capital Benefit on or before October 10, 2024. (UMF 26.) If that payment was not received in a timely manner, the Beneficiary Defendants were authorized to proceed with the foreclosure sale without further notice. (UMF 27.)

Capital Benefit did not receive that payment by October 10, 2024. (UMF 33.) Plaintiffs ‘dispute’ this UMF by indicating that they ‘attempted to make payment but Defendants would not accept.’ (*Id.* response thereto.) Plaintiff Velinedi’s declaration indicates that she **attempted** to make the payment on October 9, but her account on the website “was locked.” (Valinedi Decl. ¶ 14.) She did not request a new link to make the payment until October 11, 2024. (*Id.* at ¶ 15; Ex. A.) This was *after* the Capital Benefits representative reminder her on October 10: “Per the agreement you signed, the payment is due today!” (Valinedi Decl. Ex. A at p. 1/6.) Plaintiffs present no evidence that they followed up after requesting the link – or that they actually made the required payment at any time. Plaintiffs’ evidence supports the finding that they failed to timely make the required monthly payment.

Defendants also submit evidence that Plaintiffs failed to provide written proof that the senior loan was current. (UMF 28, 34.) Plaintiffs dispute UMF 34, regarding their failure to provide written proof that the senior loan was current, by asserting that the “senior loan was current,” citing Velinedi’s declaration at paragraph 19. The declaration, however, makes no such statement at paragraph 19 – or anywhere else. In fact, the ‘senior loan’ is not mentioned anywhere in the declaration.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Intentional Misrepresentation

“The essential elements of a count for intentional misrepresentation are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage.” (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 230-31.)

Initially, as noted by Defendants, “Plaintiffs admitted that their “Fraudulent Misrepresentation claim has no merit...” via the deemed admitted RFAs. (RFA 15.) In addition, Defendants have presented evidence showing that Plaintiffs failed to meet their burden to prove this cause of action.

The Complaint alleges that the misrepresentations relate to the terms of the Forbearance Agreement. Specifically, Plaintiffs allege:

“On or about September 10, 2024, Defendants offered and Plaintiffs accepted a Forbearance Agreement, whereby Defendants demanded and Plaintiffs tendered a lump sum payment of \$45,000.00 to be applied toward the default payments and late charges. In exchange, Defendants agreed to postpone the foreclosure sale continuously, in 30 day increments, so long as Plaintiffs tendered their regular monthly payments beginning October 10, 2024. When Plaintiffs tendered the regular monthly payment as scheduled, Defendants rejected the payment and proceeded to foreclose on the Property in breach of the Forbearance Agreement.” (¶ 50.)

As Defendants concede, the Forbearance Agreement did require a postponement to the nonjudicial

foreclosure sale from September 12 to October 23, 2024, if Capital Benefit receive a payment from Plaintiffs in the amount of \$5,000 by September 10, 2024. (UMF 21.) Plaintiffs made the required payment on September 9, 2024, and the Beneficiary Defendants postponed the trustee's sale to October 23, 2024. (UMF 32.)

The issue, however, relates to the requirement that "Plaintiffs tendered their regular monthly payments beginning October 10, 2024." (¶ 50.) As outline above in the Breach of Contract – Forbearance section, Defendants have adequately evidenced that Plaintiffs failed to timely make the October 10 payment.

The fact that Defendants *did* postpone the nonjudicial foreclosure sale upon receipt of the \$45,000 payments shows their intent to abide by the terms of the Forbearance Agreement. It was only after Plaintiff's failed to make the required monthly payment in a timely manner that Defendants moved forward with the foreclosure sale – which was their right under the terms of the Forbearance Agreement.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Negligence

Plaintiff's negligence cause of action is based upon the same facts as the Breach of Contract – Deed of Trust cause of action. That is, Plaintiffs allege that Defendants owed them a duty to provide proper notice of the NOD and NoTS and the Defendants failed to do so. Accordingly, this cause of action fails for the same reasons outlined above with respect to the first cause of action for Breach of Contract – Deed of Trust.

Defendants also argue that Plaintiffs have failed to show that they owed a duty to Plaintiffs. A financial institution "owes no duty of care to a borrower when the institution's involvement in the loan transaction does not exceed the scope of its conventional role as a mere lender of money." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 927.) "Liability to a borrower for negligence arises only when the lender 'actively participates' in the financed enterprise 'beyond the domain of the usual money lender.'" (*Wagner v. Benson* (1980) 101 Cal.App.3d 27, 35.) "Normal supervision of the enterprise by the lender for the protection of its security interest in loan collateral is not 'active participation.'" (*Ibid.*)

Plaintiff has not alleged, nor provided evidence, that Defendant institutions 'actively participated' in the financed enterprise 'beyond the domain of the usual money lender.' As such, Defendants have met their burden to show that Plaintiffs cannot establish a duty to support their negligence cause of action.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Wrongful Foreclosure

The basic elements of a tort cause of action for wrongful foreclosure are "(1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale (usually but not always the trustor or

mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering.” (*Miles v. Deutsche Bank National Trust Co.* (236 Cal.App.4th 394, 408.)

Initially, Plaintiffs admitted that “Defendants did not conduct a Wrongful Foreclosure....” (RFA 17, all caps removed.) This alone is sufficient to grant Defendants’ motion as to this cause of action.

In addition, this cause of action is also based on the Defendants’ alleged failure to give proper notice of the NOD and NoTS. As outlined above, Defendants provided proper notice by mail – and Plaintiffs’ claims to have not received the notices are irrelevant. (See *Knapp*, supra, 123 Cal.App.4th at 88 quoting *Lupertino*, supra, 35 Cal.App.3d at 746-47.)

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Cancellation of Instruments

Again, this cause of action is also based on the alleged failure to provide proper notice of the NOD and NoTS.

Plaintiffs admitted that the Loan Note, Deed of Trust, and Forbearance Agreement were all serviced in compliance with all applicable laws. (RFAs 7, 12.) They also admit that Defendants did not wrongfully foreclose. (RFA 17.)

In addition to these admissions, as outlined thoroughly above, Defendants have shown that all notices were properly sent – which is all that is required. Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Declaratory Judgment

The declaratory judgment cause of action seeks a declaration indicating that the NOD and NoTS were improperly recorded and not properly served. This cause of action fails for all the same reasons outlined above.

Conclusion

Based on the above, Defendant’s Motion for Summary Judgment is **granted**.

14. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's

individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of that arbitration.

The motions are **continued to September 16, 2026 at 9:00 a.m.** for supplemental briefing.

Background

Defendant filed these motions on October 20, 2025. The motions are supported by the declaration of Junior Bolanos, Director of Human Resources for Diversified Restaurant Group RSC, LLC, described as a third-party provider of payroll and HR services to Defendant. Bolanos describes Defendant's use of the TalentReef electronic onboarding system, a password-protected platform that restricts the ability of anyone but the employment candidate to access and sign onboarding documents. Bolanos authenticates an arbitration agreement bearing Plaintiff's electronic signature dated June 15, 2023.

Plaintiff filed opposition on July 7, 2026, supported by her own declaration. Plaintiff denies electronically signing the agreement, and states that an employee named "Giovani" asked her for certain background information when she arrived for work. (Hernandez Decl., ¶ 3; see also *id.*, ¶ 4 ["I did not complete any paperwork electronically during my hiring process with Defendant."].) Plaintiff identifies what she claims are errors in the June 15, 2023 application, and in the same paragraph states she "**did** complete an electronic application for Defendant." (*Id.*, ¶ 6 [emphasis added].)

Defendant filed a reply on July 22, 2026, supported by a supplemental declaration of Bolanos and a declaration of Giovanni Saligan, the General Manager of the restaurant where Plaintiff worked. These declarations present matters not addressed in the moving papers. They state that Plaintiff was originally hired for Defendant on September 9, 2021 and electronically signed an arbitration agreement at that time, and they attach that agreement and related documents. They further state that Plaintiff approached Saligan in or around May 2023 asking that her onboarding records be corrected, that the TalentReef platform did not permit the requested modification, that a new onboarding was initiated for that purpose, and that Saligan watched the Plaintiff execute the June 15, 2023 onboarding documents on her own device. The supplemental declaration also states that the identifying information Plaintiff self-reported in 2021 differs from the information provided in 2023.

On July 23, 2026, Plaintiff filed objections to the supplemental Bolanos declaration and the Saligan declaration, asserting that this evidence is untimely and improperly submitted for the first time on reply.

The proponent of an arbitration agreement is not required to establish the authenticity of an electronic signature until the opposing party places it in issue, and supplemental declarations submitted on reply for that purpose are proper. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060-1061.) Here, however, the reply goes further than authentication. It asserts a prior period of employment, a prior arbitration agreement, Plaintiff's own request that her employment records be corrected, and a percipient witness to the 2023 events.

Where enforceability turns on which of two conflicting factual accounts is credited, the court sits as the trier of fact. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.) The court declines to resolve the enforceability issue before Plaintiff has had the chance to respond to Defendant's evidence presented with the reply.

Order

The hearing on this motion is **continued to September 16, 2026 at 9:00 a.m. in Department 16.**

No later than **August 10, 2026**, Plaintiff may file a supplemental opposition brief not exceeding seven pages, together with any declarations and exhibits responding to the supplemental declaration of Junior Bolanos and the declaration of Giovanni Saligan filed with Defendant's reply.

No later than **August 24, 2026**, Defendant may file a supplemental reply brief not exceeding seven pages. No further declarations or evidence may be submitted with the supplemental reply.

15. 9:00 AM CASE NUMBER: C24-03533

CASE NAME: CHARLES KASPER VS. KARINA KASPER

HEARING ON DEMURRER TO: TO THE COMPLAINT

FILED BY: KASPER, JUSTUS

TENTATIVE RULING:

This is Justus Hlady-Kasper's demurrer to the complaint. It is unopposed and well taken.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The demurrer is sustained. Plaintiff shall have thirty days leave to amend from the date he is served

by defendant with notice of this ruling.

16. 9:00 AM CASE NUMBER: C24-03533
CASE NAME: CHARLES KASPER VS. KARINA KASPER
***HEARING ON MOTION IN RE: TO DECLARE PLAINTIFF A VEXATIOUS LITIGANT**
FILED BY: KASPER, KARINA MARIE
TENTATIVE RULING:

This is Karina Kasper's motion to declare plaintiff a vexatious litigant. The moving papers do not show behavior that meets the standards of Code of Civil Procedure Section 391(b)(1),(2),(4) or (5). Nor has there been sufficient evidence yet of "unmeritorious motions, pleadings or other papers" or "conduct [of] unnecessary discovery or ...other tactics that are frivolous or solely intended to cause unnecessary delay" to meet the standard of Section 391(b)(3). There is evidence of mistakes made by a self-represented litigant, but that does merit a finding of "vexatious litigant." The motion is denied without prejudice to renewal upon an appropriate showing at an appropriate time.

17. 9:00 AM CASE NUMBER: C24-03533
CASE NAME: CHARLES KASPER VS. KARINA KASPER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BLUE GARDEN CARE
***TENTATIVE RULING**

This is Blue Garden Care's demurrer to the complaint. It is unopposed and well taken.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion

of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The demurrer is sustained. Plaintiff shall have thirty days leave to amend from the date he is served by defendant with notice of this ruling.

18. 9:00 AM CASE NUMBER: C24-03533
CASE NAME: CHARLES KASPER VS. KARINA KASPER
***HEARING ON MOTION IN RE: STRIKE DOE AMENDMENT**
FILED BY:
TENTATIVE RULING:

This is Justus Hlady-Kasper's motion to strike the Doe amendment on the ground that he was not named as a Doe defendant until after the statute of limitations had run. Doe defendants may be named after the running of the statute of limitations in certain circumstances. The mere fact that he was served in September 2025 is not a sufficient basis for striking the Doe amendment. The motion is denied without prejudice to being renewed upon a proper showing. See. E/g/ Winding Creek v. McGlashan (1996) 44 Cal. App. 4th 993, at 942-943.

19. 9:00 AM CASE NUMBER: C24-03533
CASE NAME: CHARLES KASPER VS. KARINA KASPER
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY:
TENTATIVE RULING:

This is Denise Kasper’s motion for judgment on the pleadings. It is unopposed and well taken.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410

(noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted.

20. 9:00 AM CASE NUMBER: C24-03534
CASE NAME: SONIA COLEMAN VS. RESIDENTIAL FIRST CAPITAL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RESIDENTIAL FIRST CAPITAL
TENTATIVE RULING:

This is defendants’ demurrer to the complaint of Sonia Coleman.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The demurrer is sustained with twenty days leave to amend.

21. 9:00 AM CASE NUMBER: C25-01135
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KSL ASSOCIATE GROUP, INC.
TENTATIVE RULING:

Defendant KSL Associate Group, Inc. moves to compel arbitration of plaintiff's individual claims, strike the class claims, and stay proceedings pending the outcome of the arbitration.

Plaintiff has filed a notice of non-opposition to defendant's motion to compel arbitration.

The motion is unopposed. It is, therefore, granted.

22. 9:00 AM CASE NUMBER: C25-01877
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KSL ASSOCIATE GROUP, INC.
TENTATIVE RULING:

Defendant KSL Associate Group, Inc. moves to compel arbitration of plaintiff's individual claims and stay the representative PAGA proceedings pending the outcome of the arbitration.

Plaintiff has filed a notice of non-opposition to defendant's motion to compel arbitration.

The motion is unopposed. It is, therefore, granted.

23. 9:00 AM CASE NUMBER: N26-0851
CASE NAME: PETITION OF:LVNV ASSISTANCE, LLC
HEARING IN RE: INITIAL PETITION FILED
FILED BY: LVNV ASSISTANCE, LLC
TENTATIVE RULING:

This is an application by LVNV Assistance, LLC to approval of a transfer of structured settlement payment rights.

The application is essentially boilerplate and provides little or no information about the merits of the specific proposed transfer.

There is no proof of service, so the Court does not know who has been notified of this filing.

Most of the information on the forms attached to the petition is redacted. Although the Petition says "A true and correct copy of the proposed Transfer Agreement will be filed subsequently hereto" it has not been filed..

There is no information about who received what information (other, perhaps, than "E.H.")

There is little evidence of compliance with Insurance Code Section 10139.5(f); only conclusory statements.

There is hardly any substantive information about the proposed transfer. Thus, the Court is unable to evaluate "whether the transfer is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Insurance Code, Sec. 10137. Likewise, the Court is unable to determine if the requirements of Insurance Code Section 10134 et seq. Have been met.

The application is denied without prejudice to submission of a proper application for an order approving the transfer.

Discovery Law & Motion

24. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FOR DEFENDANTS' FORM INTERROGATORIES AND SPECIAL INTERROGATORIES**

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant's motion to compel further responses to 55 special interrogatories and one form interrogatory (set one). It is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion

or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full, verified, code-compliant further responses to the interrogatories specified in the motion within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2030.300(d): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response to interrogatories...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

25. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS' REQUEST FOR PRODUCTION OF DOCUMENT**

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant’s motion to compel further responses to defendants’ request for production of documents (set one). The motion is limited to those 35 document requests identified in defendants’ August 27, 2025 letter to plaintiff’s counsel. The motion is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be

construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full, verified, code-compliant further responses Requests for Production of Documents No. 1, 4, 5,6,8,11-34, 36, 38, 39, 43, 51 and 53 and shall produce all responsive, non-privileged documents within their possession, custody, or control, properly identified by Bates number and request number. All that must be done within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2031.310(h): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response to a demand...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

26. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS'**

REQUESTS FOR ADMISSION, SET ONE

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant’s motion to compel further responses to 13 requests for admissions contained in set one, viz., Nos. 8, 9, 10, 19 through 24, 27, 34, 41 and 81. (set one). The motion is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to

oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full and complete responses to requests for admission Nos. 8, 9, 10, 19 through 24, 27, 34, 41 and 81. (set one) within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2033.290(d): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

Law & Motion
Add On

27. 9:00 AM CASE NUMBER: N26-0600
CASE NAME: TIFFANY PANFILI VS. TARA STARR M.D. INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: TARA STARR M.D. INC.

TENTATIVE RULING:

This is an unlawful detainer action (see CCP 1159-1179) in which the complaint alleges that Defendant failed to pay rent owing pursuant to the terms of a lease, a 3 day notice to “pay or quit” was served on Defendant and Defendant failed to pay the rental owing or vacate the premises. Defendant demurs to the Complaint based on “uncertainty” that the complaint fails to state how the amount owing was calculated, etc. And that certain allegations are untrue. A demurrer cannot be used to challenge veracity of allegations in the complaint. Defendant’s objections to the complaint are subject to proof during discovery and at trial and are not the basis for demurrer. The demurrer is **OVERRULED**. Answer shall be filed within five days from this hearing date.